



Consumer Protection Act 1971

1971 CHAPTER 15

An Act to amend section 3 of the Consumer Protection Act 1961. [30th March 1971]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of section 3
of Consumer
Protection
Act 1961.
1961 c. 40.

1. In section 3 of the Consumer Protection Act 1961 the proviso to subsection (2) shall be omitted and the following shall be inserted in lieu thereof:—

“(2A) Where the commission by any person of an offence under this section is due to the act or default of some other person that other person shall be guilty of the offence, and a person may be charged with and convicted of the offence by virtue of this subsection whether or not proceedings are taken against the first-mentioned person.

(2B) Where an offence under this section is alleged to have been committed by reason of a contravention of or failure to comply with any requirement imposed under section 1 of this Act in relation to any goods or component part it shall be a defence for any person charged with the offence (whether by virtue of subsection (2) or by virtue of subsection (2A) of this section) to prove that he took all reasonable precautions and exercised all due diligence to avoid the commission of such an offence.”

Citation,
commence-
ment and
extent.

2.—(1) This Act may be cited as the Consumer Protection Act 1971, and this Act and the Consumer Protection Act 1961 may be cited together as the Consumer Protection Acts 1961 and 1971.

(2) This Act shall come into force at the expiration of the period of one month beginning with the day on which it is passed.

(3) This Act does not extend to Northern Ireland.